

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 3764

By: Turner of the House

and

Hamilton of the Senate

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7 An Act relating to crimes and punishments; creating
8 the Foreign Terrorist Organization Felony Enhancement
9 Act; defining term; providing for enhancement of
10 felony sentences under certain circumstances; making
11 enhanced punishment applicable to mandatory minimum
12 sentences; prohibiting the suspension or deferral of
13 sentences; directing courts to make certain
14 determination; allowing courts to take judicial
15 notice of certain designations; providing burden of
16 proof requirements; deeming association, membership,
17 or knowing support of certain organizations as an
18 aggravating factor; providing for codification; and
19 declaring an emergency.

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AUTHOR: Add the following House Coauthor: Wolfley

AUTHOR: Add the following Senate Coauthor: Burns

AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
entire bill and insert

"An Act relating to gang-related offenses; amending
21 O.S. 2021, Section 856.3, as last amended by
22 Section 25 of Enrolled Senate Bill No. 1627 of the
23 2nd Session of the 60th Oklahoma Legislature, which
24 relates to condition of membership; criminalizing
certain acts related to foreign terrorist
organizations; providing for penalties; authorizing a
court to take judicial notice of certain designation;

1 updating statutory language; and providing an
2 effective date.

3 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

4 SECTION 1. AMENDATORY 21 O.S. 2021, Section 856.3, as
5 last amended by Section 25 of Enrolled Senate Bill No. 1627 of the
6 2nd Session of the 60th Oklahoma Legislature, is amended to read as
7 follows:

8 Section 856.3. A. Any person who attempts or commits a gang-
9 related offense as a condition of membership in a criminal street
10 gang or while in association with any criminal street gang or gang
11 member shall be guilty of a Class B5 felony offense punishable upon
12 conviction by imprisonment in the custody of the Department of
13 Corrections for a term of five (5) years, which shall be in addition
14 to any other penalty imposed. For purposes of this ~~section~~
15 subsection, "criminal street gang" is defined by subsection F of
16 Section 856 of this title and "gang-related offense" means those
17 offenses enumerated in subsection F of Section 856 of this title.

18 B. Any person who attempts or commits a gang-related offense as
19 a condition of membership of, while in association with, acting on
20 behalf of, or knowingly supporting any foreign terrorist
21 organization shall be guilty of a Class B5 felony offense punishable
22 upon conviction by imprisonment in the custody of the Department of
23 Corrections for a term of five (5) years, which shall be in addition
24 to any other penalty imposed. For purposes of this subsection,

1 "foreign terrorist organization" means any organization designated
2 by the United States Department of State as such pursuant to 8
3 U.S.C., Section 1189. The court may take judicial notice of such
4 designation as published in the Federal Register or maintained by
5 the United States Department of State.

6 SECTION 2. This act shall become effective November 1, 2026."

7 Passed the Senate the 29th day of April, 2026.

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9 _____
10 Presiding Officer of the Senate

11 Passed the House of Representatives the ____ day of _____,
12 2026.

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14 _____
15 Presiding Officer of the House
16 of Representatives
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14 determination; allowing courts to take judicial
15 notice of certain designations; providing burden of
16 proof requirements; deeming association, membership,
17 or knowing support of certain organizations as an
18 aggravating factor; providing for codification; and
19 declaring an emergency.

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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 3. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 1269 of Title 21, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Foreign
Terrorist Organization Felony Enhancement Act".

SECTION 4. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1269.1 of Title 21, unless there
is created a duplication in numbering, reads as follows:

1 As used in the Foreign Terrorist Organization Felony Enhancement
2 Act, the term "designated foreign terrorist organization" means any
3 organization designated by the United States Department of State,
4 pursuant to Section 219 of the Immigration and Nationality Act,
5 Section 1189 of Title 8 of the United States Code.

6 SECTION 5. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1269.2 of Title 21, unless there
8 is created a duplication in numbering, reads as follows:

9 A. If a person is convicted of a felony offense under the laws
10 of this state, and it is proven that, at the time the felony offense
11 was committed, the person was a member of, acting on behalf of, or
12 knowingly supporting a designated foreign terrorist organization,
13 the sentence shall be enhanced as follows:

14 1. The term of imprisonment imposed shall be not less than
15 twice the maximum sentence that could have been imposed for a first
16 conviction for the underlying felony offense; and

17 2. Any fine imposed shall be not less than twice the maximum
18 fine that could have been imposed for a first conviction for the
19 underlying felony offense.

20 B. The enhanced term of imprisonment and fine provided for in
21 subsection A of this section shall apply in addition to, and not in
22 place of, any mandatory minimum sentence applicable to the
23 underlying offense.
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1 C. The enhanced term of imprisonment provided for in subsection
2 A of this section shall not be subject to statutory provisions for
3 suspension or deferral of the sentence.

4 SECTION 6. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1269.3 of Title 21, unless there
6 is created a duplication in numbering, reads as follows:

7 Before a penalty enhancement may be imposed under the provisions
8 of the Foreign Terrorist Organization Felony Enhancement Act, the
9 court shall determine that:

10 1. The organization with which the defendant is alleged to be
11 affiliated was, at the time the criminal offense was committed,
12 designated as a Foreign Terrorist Organization by the United States
13 Secretary of State pursuant to Section 219 of the Immigration and
14 Nationality Act, Section 1189 of Title 8 of the United States Code;
15 and

16 2. Such designation was active and in full force and effect at
17 the time of the offense.

18 The court may take judicial notice of the designation as
19 published in the Federal Register or as maintained by the United
20 States Department of State.

21 SECTION 7. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 1269.4 of Title 21, unless there
23 is created a duplication in numbering, reads as follows:

1 A. To apply the penalty enhancement under the Foreign Terrorist
2 Organization Felony Enhancement Act, the state shall prove that the
3 defendant:

4 1. Committed the underlying felony offense; and

5 2. At the time of the offense:

6 a. was a member of,

7 b. was acting at the direction of,

8 c. knowingly provided material support to, or

9 d. knowingly associated with in furtherance of the
10 objectives of,

11 a designated foreign terrorist organization.

12 B. The trier of fact shall make a specific finding on the
13 record regarding the affiliation of the defendant with a designated
14 foreign terrorist organization.

15 C. Association with, membership in, or knowing support of a
16 designated foreign terrorist organization at the time a criminal
17 offense is committed shall be deemed an aggravating factor for
18 purposes of:

19 1. Determining eligibility for bail and the appropriateness of
20 conditions of release;

21 2. Determining the length and severity of any sentence imposed
22 within statutory limits;

23 3. Determining whether probation may be granted;

24 4. Determining eligibility for parole or early release; and

5. Determining eligibility for sentence modification or commutation.

Aggravating factors shall be considered in addition to any other statutory aggravating circumstance under state law.

SECTION 8. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate